

Company Name

Recruitment Policy

Last updated date:

1. Introduction

- 1.1 Effective and consistent recruitment practices are essential to ensure that all applicants are treated fairly and with equality of opportunity so that costly recruitment mistakes are avoided.
- 1.2 The recruitment process must result in the selection of the most suitable person for the job in respect of skills, experience and qualifications. To this end, the Company will recruit candidates who are most suited to the position in question and comply with its **[insert name of policy]** Policy at all times. The nationality of the most suitable candidate will have no bearing on whether or not he/she is selected for the post, subject to the requirement to meet the resident labour market test where applicable and eligibility for sponsorship where necessary.
- 1.3 This Policy defines the principles that the Company considers important in the recruitment process and aims to ensure that consistency and good practice is applied across the Company.

2. Equal Opportunities/Equality and Diversity in Recruitment

- 2.1 It is against the Company's Equal Opportunities/Equality and Diversity Policy to discriminate either directly or indirectly on the grounds of race, nationality, ethnic origin, gender, marital status, pregnancy, age, disability, sexual orientation, gender reassignment, ethnicity, cultural or religious beliefs. Reasonable adjustments to the recruitment process will be made to ensure that no applicant is disadvantaged because of his/her disability.
- 2.2 All employees are required to comply with the requirements of the **[insert name of relevant company policy]** Policy at every stage of the recruitment process including production of job descriptions, advertising material, instructions given to recruitment agencies, shortlisting of applications, interviewing, selection decisions and offers of employment.
- 2.3 All policies and procedures reflect our commitment to achieving and maintaining equal opportunities within the workplace. It is the responsibility of every employee to monitor continually and evaluate formal and informal practices and procedures to ensure that they do not directly or indirectly discriminate against any individual or group of society.
- 2.4 The Company will treat all job applicants in the same way at each stage of the recruitment process, and no assumptions will be made on the basis of, for example, appearance or a foreign name. There will be no assumption that a foreign national or someone from an ethnic minority has no right to work in the UK.
- 2.5 Any employee who is found to be discriminating in any way during the recruitment process will be subject to the disciplinary procedure and may be liable to dismissal.

3. Monitoring Equal Opportunities/Equality and Diversity in Recruitment

- 3.1 In order for us to monitor the effectiveness of the Recruitment and Equal Opportunities/Equality and Diversity Policy it is necessary that all candidates complete the Equal Opportunities/Equality and Diversity Monitoring Form. Any data which is collected regarding gender and ethnic origins will be collected solely for the purpose of monitoring equal opportunity and will be held confidentially by the Company and protected from misuse. [This data should be recorded and maintained on the Equal Opportunities/Equality and Diversity Recruitment Monitoring Control Sheet.]

4. Recruitment Authorisation

- 4.1 Any vacancy must be authorised by [*Insert Title of Appropriate Person or Committee etc.*] before any attempt is made to fill the role. In making the request to the [*Insert Title of Appropriate Person or Committee etc.*] consideration should be given to whether the role could be absorbed amongst the rest of the team or elsewhere in the Company.
- 4.2 Once authorisation has been obtained, the person/manager recruiting must produce a job description for the vacancy which provides a fair and accurate representation of the role and follows the format which is laid out in the Job Description Form. The job description will include a clearly drafted person specification.
- 4.3 The job description will describe the duties, responsibilities and seniority of the post and the person specification will describe the qualifications, knowledge, experience, skills and competencies needed for the role to be carried out effectively.
- 4.4 The Job Description Form should be given to all candidates prior to interview to enable them to prepare adequately for the interview.
- 4.5 Particular care must be taken when producing job descriptions to ensure that unreasonable requirements are not placed on the job holder which cannot be objectively justified and may unfairly disadvantage certain groups e.g. women, ethnic minorities or disabled persons.

5. Job Descriptions and Person Specifications

- 5.1 Once authorisation has been obtained, the person/manager recruiting must produce a job description for the vacancy which provides a fair and accurate representation of the role and follows the format which is laid out in the Job Description Form. The job description will include a clearly drafted person specification.
- 5.2 The job description will describe the duties, responsibilities and seniority of the post and the person specification will describe the qualifications, knowledge, experience, skills and competencies needed for the role to be carried out effectively.
- 5.3 The Job Description Form should be given to all candidates prior to interview to enable them to prepare adequately for the interview which will improve the success of the interviewing process.
- 5.4 Particular care must be taken when producing job descriptions to ensure that unreasonable requirements are not placed on the job holder which cannot be objectively justified and may unfairly disadvantage certain groups e.g. women, ethnic minorities, elderly or disabled persons.

6. Advertising of Vacancies

- 6.1 All vacancies must be advertised within the Company to all members of staff prior to external methods of recruitment being used. Wherever possible internal candidates will be considered in preference to external candidates and reasonable training and coaching will be provided to enable employees to achieve career advancement. Where it has not been possible to recruit within the Company, then external methods of recruitment may be considered. These may include approaching approved employment agencies or advertising on job boards.
- 6.2 Where the job is to be advertised, the proposed advertisement must be submitted to [*the HR department*] OR [*Insert Name*] for approval. An advertisement must not show any intention to discriminate unlawfully [and should follow the Equal Opportunities Commission recommended code].

7. Shortlisting

- 7.1 In order to shortlist candidates for interviews, the Company will:

- 7.1.1 Identify specific job-related criteria using the job description;
- 7.1.2 Match these criteria with those detailed in the candidate's CV; and
- 7.1.3 Use this information to select which candidates will be invited for interview.
- 7.2 Candidates who apply for positions with the Company, whether through a direct advertisement or a recruitment agency, will always be informed of the outcome of their application as quickly as possible. Where candidates have applied to the Company directly, they will be informed of the outcome in writing.

8. Recruitment Interviews

- 8.1 The interview will focus on the needs of the job and skills needed to perform it effectively in accordance with the guidance and procedures set down in the Company's **[insert guidance notes]**.
- 8.2 Managers conducting recruitment interviews will ensure that the questions that they ask job applicants are not in any way discriminatory or unnecessarily intrusive. A record of every recruitment interview will be made and passed to **[the HR department] OR [Insert Name]** to be retained for a suitable period of time.

9. Offer of Employment

- 9.1 Once the most appropriate candidate has been selected, this appointment needs to be approved by **[Job Title]** and the terms and condition of the offer of employment must be confirmed by **[Insert Name and/or Title of Appropriate Authority]**.
- 9.2 In setting a starting salary, the Company must bear in mind the salary of existing employees in a similar role in order to ensure that inconsistencies are not created within the Company which could be challenged under the Equality Act 2010.
- 9.3 An offer should be made verbally to the candidate and, once agreed, a contract of employment must be raised and sent out with the offer letter.

10. [Points-based system

- 10.1 The Company will comply with the requirements of the Home Office's points-based system for the employment of foreign workers. Where a worker is to be recruited who is subject to immigration control, it is the responsibility of **[Insert name and job title]** to ensure that the post in question comes within one of the tiers of the system and will comply with the requirements of that tier.
- 10.2 In the event that a post is eligible for sponsorship under tier 2 (general) or certain tier 5 sub-categories, the Company will carry out a recruitment search before appointing an overseas national.
- 10.3 In respect of tier 2 skilled workers and some tier 5 temporary workers who are to be recruited into the organisation, the Company [already has] **OR [will apply for]** a sponsor licence to enable it to issue a certificate of sponsorship to relevant workers and will comply with all its obligations in this regard.]

11. References

- 11.1 All employment offers are conditional upon receipt of **[insert amount of references required]** professional references which are satisfactory to the Company. The referees should usually be the applicant's current and previous employers although, in the case of a college or school leaver, a college tutor or teacher will be acceptable.
- 11.2 Details of referees will usually be sought from an applicant once an offer of employment is

made and referees will not be approached without the applicant's permission.

- 11.3 [However for **[e.g. Senior Positions]** the Company may require the applicant to provide details of referees prior to an offer of employment being made. With the applicant's consent, the referees will be approached and the responses received will form part of the selection decision.]
- 11.4 References will usually be sought in writing and require that a standard reference form be completed. Details may be checked or clarified by telephone where necessary. If a response to a written request for a reference has not been received, then the Company will telephone the referee and may seek an oral reference instead.
- 11.5 If references which are satisfactory to the Company are not received within a reasonable timescale then it may be necessary to withdraw the offer of employment.

12. The Bribery Act

- 12.1 When recruiting for posts that may be vulnerable to bribery risks (such as roles in Purchasing, Marketing or Distribution), and subject to the requirements of the Rehabilitation of Offenders Act 1974, the Company may need to carry out additional checks during the recruitment process.
- 12.2 These checks may include carrying out criminal record, bankruptcy and credit reference checks and/or taking up additional references.

13. Qualification Certificates

- 13.1 All applicants are required to provide evidence of qualifications either in the form of original certificates, which will be copied and then returned or photocopies. Confirmation will be sought from the relevant Examination Board if certificates cannot be produced.
- 13.2 The employment offer will be conditional upon valid evidence of qualification and the offer may be withdrawn if this is not supplied within a reasonable timescale.
- 13.3 If an applicant falsifies certificates or evidence of qualifications and this subsequently comes to the attention of the Company at any stage during employment then the individual will be subject to disciplinary action and may be liable to dismissal.

14. Work Permits and Illegal Working

- 14.1 It is against the law to employ a person who does not have permission to live and work in the UK. The Company could be prosecuted and fined under the Immigration and Asylum Act 1999 for employing somebody who does not have permission to work in the UK. The Company will not employ an individual unless he or she has a legal right to work in the UK.
- 14.2 All offers of employment will be subject to the successful candidate providing the required original documents showing evidence of his or her right to work in the UK (on an ongoing or restricted basis). **[Job Title]** will check the necessary documents during the recruitment process. All successful candidates will be required to provide evidence of one original piece of documentation from the list below once an offer of employment is made:
- 14.3 A document giving the person's National Insurance number and name. This could be a P45, a National Insurance card or a letter from a government agency;
 - 14.3.1 A document showing that the person can stay indefinitely in the UK or that they have no restriction preventing them from taking employment. This may be an endorsement in a passport or Home Office Letter;
 - 14.3.2 A work permit or other approval to take employment from the Department for Education and Employment;

- 14.3.3 A document showing that they are a UK Citizen or have right of abode in the UK. This may be an endorsement in a passport, a birth certificate, a registration or naturalisation document or a letter from the Home Office;
- 14.3.4 A document showing that they are a national of a European Economic Area country. This may be a passport or national identity card: or
- 14.3.5 A document confirming registration with the Worker Registration Scheme.
- 14.3 In order to avoid discrimination, it is essential that the same criteria are applied to every person who is offered employment with the Company, regardless of their race, nationality or ethnic or national origins.
- 14.4 If an applicant is not able to produce one of the listed documents then they will be advised to contact the Citizens Advice Bureau for further advice and their employment will be put on hold until evidence can be produced and the offer may be withdrawn.
- 14.5 In the event that an individual has time-limited permission to live and work in the UK he or she must provide evidence of his or her renewed right to live and work in the UK at the expiry of the current permission.
- 14.6 If it becomes evident to the Company during the course of an employee's employment that he or she does not have the right to work in the UK, the Company will, following an investigation into the circumstances and having established that the employee does not have the right to work in the UK, terminate the employee's contract of employment.
- 14.7 If a line manager becomes concerned that an employee in his or her team or department is working in the UK illegally, he or she should report the matter to **[Insert name and job title]**, giving reasons for the concern. **[Insert name and job title]** will investigate the matter further.

15. Personnel Records and Starter Procedures

- 15.1 Personnel records are held by **[Name and Job Title]**. A file containing paper records is held for each employee and will include:
 - 15.1.1 Contract of Employment;
 - 15.1.2 Personal information – New Starter Form;
 - 15.1.1 Next of kin;
 - 15.1.2 Ethnic origin;
 - 15.1.3 Home address;
 - 15.1.4 Copy of Birth certificate (or similar proof of right to work);
 - 15.1.5 Copy of marriage certificate if appropriate;
 - 15.1.6 Copy of all qualifications;
 - 15.1.7 Changes to terms and conditions;
 - 15.1.8 Absence records;
 - 15.1.9 Current Disciplinary details;
 - 15.1.10 Records of any Training undertaken; and
 - 15.1.11 Records of Objectives and Performance Appraisals.
- 15.2 These records are held in a secure environment, only accessible to **[Insert name and job title]**. Electronic records may also be held by **[Insert name and job title]**. This enables information gathering and quick access to employee records. [Our accountants/payroll bureau also have/has limited access to enable them to run payroll and pay expenses.]

Employees will be asked annually to confirm the information we hold on them is correct.

16. Complaints Procedure

Any applicants who consider that they have been unfairly treated or discriminated against during the recruitment process should write to ***[Insert Name]*** stating the grounds of the complaint. Any employee who wishes to complain about his/her experience of the recruitment process should do so by means of the Grievance Procedure.